

BOARDROOM-READY · PRIVACY, REGULATORY, COMPLIANCE · 2026

Legal layouts.

Six anchors. Five variants per anchor. Pick the strongest of each row.

HOW TO READ THIS DECK

Each anchor opens with a section divider, then walks five visual treatments of the same idea.

Mark the one that earns the room.

Slot labels lift via the slotLabelLift

transform — author writes -

Federal, not -

Federal. The

obligation matrix uses the universal

[x] [-] [] state grammar shared

with verdict-grid and checklist.

ANCHOR 01 · FEDERAL / STATE / LOCAL

How does authority layer here?

Children's data — three jurisdictions, three obligations.

FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 personal data.

Operators must post a clear notice and a deletion route.

In effect since 2000

STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

Opt-in for selling or sharing under-16 data; opt-out for over-16.

DSAR handling within 45 days; deletion verified.

Enforced 2023

LOCAL

NYC Admin Code §22-1201

Bias-audit obligation for AEDTs used in employment decisions.

Annual audit + candidate notice + public summary.

Effective 2023

Pick this when the room wants three parallel facts at a glance.

Children's data — Federal floor, State stricter, Local narrowest.

FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 personal data; nationwide floor.

STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

Opt-in for selling under-16 data; California raises the floor for its residents.

LOCAL

NYC Admin Code §22-1201

Annual bias-audit obligation for employment AEDTs; narrowest scope.

Three jurisdictions, full prose, one row each.

FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 PI; deletion within reasonable period.

In effect since 2000

STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

Opt-in for selling or sharing under-16 data; 45-day DSAR response.

Enforced 2023

LOCAL

NYC Admin Code §22-1201

Annual bias-audit obligation for employment AEDTs; candidate notice required.

Effective 2023

Federal floor → State adds opt-in → Local adds audit duty.

FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 PI; this is the floor.



STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

California adds opt-in for sale or sharing of under-16 data.



LOCAL

NYC §22-1201

Variant 1b · statute-stack preemption

New York City adds an annual AFDT bias-audit duty on top

Children's data — jurisdiction, citation, obligation, status.

JURISDICTION	CITATION	HEADLINE OBLIGATION	STATUS
FEDERAL	15 U.S.C. §6501	Parental consent for under-13 data	In effect 2000
STATE	Cal. Civ. Code §1798.120	Opt-in for selling under-16 data	Enforced 2023
LOCAL	NYC §22-1201	Annual bias audit for employment AEDTs	Effective 2023

Pick this when the audience wants to scan many obligations at once.

ANCHOR 02 · QUOTE → TRANSLATE → ACT

**The verbatim regulation, in
plain English, with the
obligation.**

What counts as "personal information" under CCPA.

Cal. Civ. Code §1798.140(o) · CCPA/CPRA

KEY INSIGHT

"Personal information" means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.

In plain English: any data tied to a household or device, not just a named person — IP addresses, cookie IDs, and device fingerprints are all in scope.

What we must do

Treat household-level identifiers as PI in our notice, retention, and DSAR workflows. Audit pixel and tag

What counts as "personal information" under CCPA.

Cal. Civ. Code §1798.140(e) - CCPA/CPRA

KEY INSIGHT

"Personal information" means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.

In plain English: any data tied to a household or device, not just a named person.

What we must do

Treat household-level identifiers as PI in notice, retention, and DSAR workflows.

"Personal information" includes the household, not just the person.

Cal. Civ. Code §1798.140(o) · CCPA/CPRA

Information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.

Personal information, defined.

Cal. Civ. Code
§1798.140(o)

KEY INSIGHT

Information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked with a particular consumer or household.

Household IDs count.
Device fingerprints count.
Action
Audit pixels next quarter.

Personal information — three columns, three jobs.

Cal. Civ. Code §1798.140(o) · CCPA/CPRA

KEY INSIGHT

Information that identifies, relates to, describes, or could reasonably be linked with a particular consumer or household.

Plain English: household-level data is in scope, not just data tied to a named person. Device IDs, cookies, IP addresses all qualify.

Action

Audit pixel inventory and update DSAR workflow to handle household-level identifiers within 45 days.

ANCHOR 03 · REGIMES × OBLIGATIONS

**Where every privacy regulator
stands on every duty.**

Privacy obligations across regimes — state grid.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR					
CCPA/CPRA					
LGPD					
PIPEDA					
HIPAA					
GLBA					

Filled · half · empty circles. Neutral ink — applies / partial / exempt as data.

Privacy obligations across regimes — heat map.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR					
CCPA/CPRA					
LGPD					
PIPEDA					
HIPAA					
GLBA					

Same grammar, semantic palette — red = applies, amber = partial, green = exempt.

Privacy obligations across regimes — same grammar, no heat.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR					
CCPA					
LGPD					
PIPEDA					
HIPAA					
GLBA					

Pills (no heat) — same data, neutral chrome. Less assertive than heat.

Privacy obligations — categorical row stripes.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR					
CCPA/CPRA					
LGPD					
PIPEDA					
HIPAA					
GLBA					

Lane stripes signal "this row is its own regime."

Three regimes, three obligations, room to breathe.

GDPR	Pre-collection; layered with purposes and legal basis	Opt-in; explicit for special-category data	30-day response; identity verification required
CCPA/CPRA	At or before collection; "Notice at Collection" required	Opt-out default for sale/sharing; opt-in for under-16 minors	45-day response; two free requests per consumer per year
LGPD	Pre-collection; controller identity disclosed	Opt-in for most processing; multiple legal bases recognised	15-day response; appeal route to the ANPD

Pick when each cell carries a sentence, not a glyph.

ANCHOR 04 · WHAT'S NEW

**The regulatory motion that
closed this quarter.**

Privacy & AI motion — Q1 2026.

FEDERAL · STATE · INTERNATIONAL

01 EU AI Act Title III

Conformity-assessment pre-market obligation took effect.

Effective Feb 2026

02 Colorado AI Act SB 24-205

Developer + deployer duties for consequential-decision systems.

Effective Feb 2026

03 FTC v. Avast §5 unfairness

\$16.5M consent order; clarifies the deception standard for privacy branding.

Final Mar 2026

04 Texas DPSA §541.151

DSAR opt-out portal mandatory; small-business safe-harbor narrowed.

Effective Mar 2026

Privacy & AI motion — Q1 2026.

FEDERAL · STATE · INTERNATIONAL

01

EU AI Act

Title III

Effective Feb 2026

High-risk system conformity-assessment pre-market obligation took effect.

02

Colorado AI Act

SB 24-205

Effective Feb 2026

Developer + deployer duties for consequential-decision systems.

03

FTC Order

In re Avast

Final Mar 2026

\$16.5M consent order; browser history sale update cards despite privacy

Variant 4 browser history sale update cards

04

Texas DPSA

Bus. & Com. Code §541.151

Effective Mar 2026

DSAR opt-out portal mandatory: safe-harbor

Privacy & AI motion — Q1 2026 timeline.

JANUARY → FEBRUARY → MARCH 2026

01

PIPEDA Reform

C-27

Senate reading in January; commissioner powers expanded.

02

EU AI Act

Title III

High-risk conformity-assessment obligation took effect 2 Feb.

03

Colorado AI Act

SB 24-205

Developer + deployer duties effective 1 Feb.

04

FTC v. Avast

§5

Consent order final 14 Mar; \$16.5M plus 20-year compliance program.

Privacy & AI motion — Q1 2026 by kind of change.

ADDED · AMENDED · REPEALED · ENFORCED

ADDED

First conformity-assessment obligation took effect across the bloc.	EU AI Act	Title III · high-risk systems
New developer + deployer duties for consequential-decision systems.	Colorado AI Act	SB 24-205

AMENDED

Opt-out portal mandatory; small-business safe-harbor threshold narrowed.	Texas DPSA	§541.151
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ENFORCED

Variant 4D · regulatory-update diff-bands		
\$16.5M consent order finalised; 20-year compliance program.	FTC v. Avast	§5 unfairness

Privacy & AI motion — Q1 2026 priorities.

WHAT TO ACT ON, WHAT TO TRACK, WHAT TO LOG

- TIER 1 Act this quarter — EU AI Act** Title III High-risk conformity-assessment paperwork pre-market; engineering deadline before any EU launch.
- TIER 2 Track — Colorado AI Act** SB 24-205 Developer + deployer duties; published deployer-notice template due in Q2.
- TIER 3 Log — FTC v. Avast** §5 Consent order final; informs how the FTC frames the deception standard.

ANCHOR 05 · TEXTUAL DIFF

**What changed in the text we
live by?**

SB-362 rewrote the opt-out link rule.

Cal. Civ. Code §1798.135 · amendment SB-362 (2024)

KEY INSIGHT

A business that ~~collects~~ collects, sells, or shares consumers' personal information shall provide ~~two or more~~ at least one designated method for submitting requests to opt-out, including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices," for use by consumers to ~~opt out of the sale of~~ direct the business not to sell or share their personal information.

why this matters SB-362 collapses "sale" and "sharing" into one duty and pins a uniform link title — homepage chrome and DSAR workflows both need a uniform UX.

SB-362 rewrote the opt-out link rule — side-by-side.

Cal. Civ. Code §1798.135 · before vs after

OLD

A business that **collects** consumers' personal information shall provide **two or more** designated methods for submitting requests to opt-out for use by consumers to **opt out of the sale of** their personal information.

NEW

A business that **collects, sells, or shares** consumers' personal information shall provide **at least one** designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "**Your Privacy Choices,**" for use by consumers to **direct the business**

SB-362 — annotated.

Cal. Civ. Code §1798.135 · amendment SB-362

KEY INSIGHT

A business that ~~collects~~ collects, sells, or shares¹ consumers' personal information shall provide ~~two or more~~ at least one² designated method for submitting requests to opt-out, including a homepage link titled "Your Privacy Choices,"³ for use by consumers to opt out.

- ¹ **Scope** Sale and sharing now both trigger the opt-out duty — even free programs are in.
- ² **Floor** Two-channel minimum drops to one; a homepage link plus a portal is now sufficient.
- ³ **Chrome** The literal link title is now mandated — uniform branding across the web.

SB-362 — old block on top, new block below.

Cal. Civ. Code §1798.135 · amendment SB-362

~~OLD — PRIOR TEXT~~

~~A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out for use by consumers to opt out of the sale of their personal information.~~

NEW · CURRENT

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices," for use by consumers to direct the business not to sell or share their personal information.

SB-362 — old, new, and why it changed.

Cal. Civ. Code §1798.135 · amendment SB-362

OLD

A business that collects consumers' personal information shall provide two or more designated methods for opt-out — to opt out of the sale of personal information.

NEW

A business that collects, sells, or shares consumers' personal information shall provide at least one method, including a homepage link titled "Your Privacy Choices," to direct

WHY

Scope Sale and sharing collapse into one duty — even free programs trigger the obligation.

Floor Two-channel minimum drops to one — a homepage link plus a portal now suffices.

Chrome The literal link title is now mandated — uniform branding.

ANCHOR 06 · STATUTE → REGULATION → GUIDANCE → CASE

**What actually binds us — and
how far down the chain we are.**

COPPA — the chain, tier by tier.

STATUTE

15 U.S.C. §6501

Congress, 1998 — verifiable parental consent for under-13 data.

REGULATION

16 C.F.R. Part 312

FTC implementing rule; 2013 rewrite expanded covered identifiers.

GUIDANCE

FTC Six-Step Compliance Plan

Staff guidance — non-binding, but cited in every consent order.

CASE

In re Epic Games · 2022

\$245M consent order — operationalised "actual knowledge" standard.

COPPA — authority weight, top binds, bottom illustrates.

STATUTE **15 U.S.C. §6501**
Congress, 1998. Binds nationwide.

REGULATION **16 C.F.R. Part 312**
FTC implementing rule, 2013 rewrite.

GUIDANCE **FTC Six-Step Plan**
Non-binding but cited.

COPPA — one statute, many branches.

STATUTE

— **15 U.S.C. §6501** COPPA, 1998

— **16 C.F.R. Part 312** — FTC implementing rule

— **FTC Six-Step Compliance Plan** — staff guidance

— **In re Epic Games (2022)** — \$245M consent order

— **In re YouTube/Google (2019)** — \$170M consent order

COPPA — bracketed tiers.

STATUTE	15 U.S.C. §6501 Congress, 1998. The binding floor for under-13 data.
REGULATION	16 C.F.R. Part 312 FTC implementing rule; 2013 rewrite.
GUIDANCE	FTC Six-Step Plan Staff guidance — quoted in every order.
CASE	In re Epic Games \$245M consent order, 2022 — defines "actual knowledge."

COPPA — four steps to the operative test.

01 STATUTE 15 U.S.C. §6501	02 REGULATION 16 C.F.R. Part 312	03 GUIDANCE FTC Six-Step Plan	04 CASE In re Epic Games · 2022
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What this deck delivers.

- 01 Six anchor layouts cover jurisdiction, quotation,
- 02 Five visual variants per anchor — the strongest of
- 03 Lean authoring: slot labels auto-lift,
- 04 Three-renderer parity: marp-cli, emulator, and
- 05 The other four variants per anchor can be deleted

**Mark the winners. The rest
goes to the cutting room
floor.**

*Lattice · Legal & regulatory ·
candidate deck*